

TENTATIVE RULING FOR SEPTEMBER 14, 2026

Department R12 - Judge Kory Mathewson

Dr. Peter Niciforos v. Chapparral Medical Group, Inc., et al – CIVSB2401689

Motion: Motion for Issue, Evidentiary, and Terminating Sanctions; Monetary Sanctions.
Movant: Defendants Chapparral Medical Group, Dr. Jeeredi Prasad, and Patty Rajan
Respondent: Plaintiff Dr. Peter Niciforos
Ruling: Motion for Issue, Evidentiary, and Terminating Sanctions are DENIED.
Monetary sanctions in the amount of \$2,660.00 is GRANTED and due within 30 days.

Defendants to provide Order and give notice.

Before the Court is Defendants' motion for sanctions. Defendants seek issue, evidentiary, terminating, and monetary sanctions for failure to respond to discovery requests. Plaintiff opposes and argues that sanctions are not warranted because he provided discovery responses on August 31, 2026.

Since Plaintiff has produced discovery responses, Defendants' request for evidentiary, issue, and terminating sanctions is denied. The evidentiary and issue sanctions requested by Defendants amount to terminating sanctions, for Defendants request that Plaintiff be prohibited from presenting evidence on all ten of Plaintiff's causes of action. (Mtn. at pp. 1-2.) Such sanctions are premature and too harsh a remedy at this time as they must be exercised incrementally and proportionately.

As for monetary sanctions. Defendants seek monetary sanctions in the amount of \$3,380 for attorney fees at a rate of \$260 per hour. (Hernandez Decl. ¶ 21.) Given the fact that Plaintiff only produced discovery responses on his deadline to oppose the motion and complied with the Court's last order nearly four months after the deadline, filing the motion appears to have been necessary and monetary sanctions are warranted, but in a reduced amount deducting from the time for the Reply and attending the hearing. Plaintiff concedes a reasonable monetary sanction is appropriate in their opposition. Accordingly, the Court grants monetary sanctions in the amount of \$2,660.00 (\$2,600 + \$60 filing fee).

Dated: September 14, 2026

Judge Kory Mathewson

TENTATIVE RULING FOR SEPTEMBER 14, 2026

Department R12 - Judge Kory Mathewson

Jose Rodriguez-Franco v. Momoda Logistics Inc., et al – CIVRS2510083

Motion: Motion to Conduct Class Discovery

Movant: Aris LLP, Counsel for Plaintiff Jose Rodriguez-Franco

Respondent: Defendant Momoda Logistics, Inc.

Ruling: Motion to Conduct Class Discovery is DENIED, without prejudice.

Defendant to provide Order and give notice.

At present, it is unclear that the class is, in fact, headless. While the motion suggests Plaintiff and Momoda reached a settlement, the evidence supporting that assertion is Aris's indication it received a call from someone purporting to be a representative of Momoda. The Court has not heard directly from Plaintiff about the settlement and no settlement agreement has been produced. However, notably absent from the opposition is also any declaration from a Momoda representative refuting the settlement or the employment of Rudy Avelar. While Aris is the moving party, Momoda should be more candid with the Court. The Court will inquire with Momoda at the hearing whether it has settled with Plaintiff.

If Plaintiff has not settled his claims, there is no headless class and thus no need for the discovery to find a new representative. In that event, the discovery motion will be denied. To the extent the Court grants Aris's concurrent motion to be relieved, Plaintiff will be given additional time to seek new counsel (which Momoda proposes—opposition at p. 14) since all parties agree Plaintiff cannot maintain a representative action in propria persona. If Plaintiff cannot obtain new counsel or subsequently settles his own claims, the Court can address the status of the lawsuit at that time. For instance, Rule 3.770(c) permits the Court to provide notice to class members before dismissal, which would protect the interests of the individual class members.

To the extent Plaintiff has, in fact, settled his own claims, the lawsuit is nevertheless still pending until it reaches a disposition in a procedurally appropriate manner. Plaintiff's expressed desire to seek new counsel would, if nothing else, presumably mean he intends to seek new counsel to represent him through the remainder of the proceeding, however short it may be. Upon presentation of a dispositive motion in the future by Defendants premised upon the settlement, Plaintiff's new counsel would have another opportunity to seek the same relief Aris currently seeks. Therefore, in this regard, the motion is premature.

Furthermore, if a settlement had been reached, the alleged violations of the Labor Code in this case should be apparent to the class members, meaning they are free, to borrow the language from *Starbucks Corp. v. Superior Court* (2011) 194 Cal.App.4th 820, (See also, *CVS Pharmacy, Inc.*, *supra*, 241 Cal.App.4th at pp. 311–312 [summarizing *Starbucks*]) to “effectuate the legislative purposes underlying [the Labor Code] by bringing individual actions.” There is also a potential for abuse if discovery were granted under the facts presented. Thus, under either scenario the motion to permit the discovery is presently denied.

Dated: September 14, 2026

Judge Kory Mathewson